

FD&C ACT (4)

FD&C Act Drug Listing and Registration

Title: Drug Establishment Registration and Drug Listing

Jurisdiction: International

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §510; 21 U.S.C. §360
Registration of producers of drugs and listing of drugs

Plain English Summary:

Manufacturers and certain other establishments involved in manufacturing, preparing, propagating, compounding, or processing drugs for U.S. distribution must comply with FDA establishment-registration and drug-listing requirements. For an Ayurvedic product that is legally classified as a drug, this means the responsible U.S. establishment may need to register with FDA and provide required information about the drug and its manufacturing activities.

The Exact Legal Text:

21 U.S.C. §360(b)(1):

Every person who owns or operates any establishment in any State engaged in manufacturing, preparing, propagating, compounding, or processing drugs or devices shall register with the Secretary his name, places of business, and establishments, and all pertinent information with respect to such establishment...

21 U.S.C. §360(j)(1):

Every person who is required to register under subsection (b), (c), (d), (e), or (i) shall, with respect to drugs manufactured, prepared, propagated, compounded, or processed at such establishment, submit to the Secretary a list of drugs manufactured, prepared, propagated, compounded, or processed by such person for commercial distribution.

Keywords/Triggers:

drug establishment registration, FDA drug registration, drug listing, Ayurvedic drug registration
USA, FDA establishment, commercial distribution, 21 USC 360, drug manufacturer registration

FD&C Act Restricted Devices / Misbranding and Adulteration Framework

Title: Adulteration and Misbranding Requirements for Drugs and Devices

Jurisdiction: International

Category: Standards

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §§501–502; 21 U.S.C. §§351–352

Plain English Summary:

The FD&C Act establishes separate statutory standards for when a drug is considered **adulterated** or **misbranded**. For an Ayurvedic product regulated as a drug, these provisions are important because manufacturing conditions, product quality, labeling, and the accuracy of information supplied with the product can determine whether the product may legally be marketed.

The Exact Legal Text:

21 U.S.C. §351 Adulterated drugs:

A drug or device shall be deemed to be adulterated

(1) If it consists in whole or in part of any filthy, putrid, or decomposed substance; or

(2)(A) if it has been prepared, packed, or held under insanitary conditions whereby it may have been contaminated with filth, or whereby it may have been rendered injurious to health; or

(B) if it is a drug and the methods used in, or the facilities or controls used for, its manufacture, processing, packing, or holding do not conform to or are not operated or administered in conformity with current good manufacturing practice...

21 U.S.C. §352(a):

A drug or device shall be deemed to be misbranded

(a) False or misleading label

If its labeling is false or misleading in any particular.

Keywords/Triggers:

adulterated Ayurvedic drug, misbranded Ayurvedic product, FDA drug quality, drug labeling requirements, CGMP, false labeling, 21 USC 351, 21 USC 352

FD&C Act Prohibited Acts

Title: Prohibited Acts Relating to Drugs

Jurisdiction: International

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §301; 21 U.S.C. §331
Prohibited acts

Plain English Summary:

Section 301 identifies activities involving drugs that are prohibited under the FD&C Act, including introducing adulterated or misbranded drugs into interstate commerce. For an Ayurvedic business selling products in the United States, this provision is important because violations of the Act can arise from the way a product is manufactured, labeled, marketed, or distributed.

The Exact Legal Text:

21 U.S.C. §331(a):

The following acts and the causing thereof are hereby prohibited:

(a) The introduction or delivery for introduction into interstate commerce of any food, drug, device, tobacco product, or cosmetic that is adulterated or misbranded.

21 U.S.C. §331(d):

The introduction or delivery for introduction into interstate commerce of any article in violation of section 355 or 360b of this title...

Keywords/Triggers:

prohibited acts FDA, adulterated drug commerce, misbranded drug commerce, Ayurvedic product violation, interstate commerce, FD&C Act violations, 21 USC 331, FDA enforcement

FD&C Act General Enforcement: Injunctions and Seizure

Title: FDA Enforcement Against Violative Drugs

Jurisdiction: International

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §§302–304; 21 U.S.C. §§332–334 Injunctions, criminal proceedings, and seizure

Plain English Summary:

The FD&C Act gives the U.S. government enforcement mechanisms when products violate the Act, including court injunctions and seizure of violative products. An Ayurvedic drug that is adulterated, misbranded, or unlawfully marketed can therefore face regulatory enforcement even after it has entered the U.S. market.

The Exact Legal Text:

21 U.S.C. §332(a) Injunction:

The district courts of the United States... shall have jurisdiction, for cause shown to restrain violations of section 331...

21 U.S.C. §334(a)(1):

Any article of food, drug, or cosmetic that is adulterated or misbranded when introduced into or while in interstate commerce... shall be liable to be proceeded against on libel of information and condemned in any district court of the United States...

Keywords/Triggers:

FDA enforcement, drug seizure, FDA injunction, adulterated Ayurvedic product, misbranded Ayurvedic product, product recall, 21 USC 332, 21 USC 334